

26NWCV01071 26NWCV01071

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CC%2C08%2F03%2F2026

Source SHA-256: a17f5cd11f2edf13c1d32c0267889af72f52e9926328539a9dd403836aa7257b

Case Number: 26NWCV01071 Hearing Date: August 3, 2026 Dept: C

ROMERO vs UBER

TECHNOLOGIES, INC., et al.

CASE NO.: 26NWCV01071

HEARING: 8/3/26 @ 9:30 AM

#13

TENTATIVE RULING

Defendants UBER

TECHNOLOGIES, INC., RASIER, LLC, and RASIERCA, LLC's Unopposed Demurrer is SUSTAINED with no leave to amend.

Moving Party to give

NOTICE.

Defendants

UBER TECHNOLOGIES, INC., RASIER, LLC, and RASIERCA, LLC (Defendants) demur to Plaintiff

KERLY VELASQUEZ ROMERO's (Plaintiff) Second Cause of Action for Negligence Per

Se on the grounds that Plaintiff fails to state facts sufficient to constitute a cause of action.

Background

On

May 28, 2024, Plaintiff was driving her vehicle eastbound on Salt Lake Avenue

in Huntington Park, California and came to a stop at the intersection of Salt Lake Avenue and Otis Avenue. (Complaint, ¶ 15.) Plaintiff alleges that when she proceeded into the intersection, Defendant MIGUEL REYES, who was then driving for Uber, negligently collided with Plaintiff's vehicle. (Complaint, ¶ 15.) Plaintiff alleges that Reyes violated California Vehicle Code Sections 21802 and 22350, causing injury and damages to Plaintiff. (Complaint, ¶ 52, 53.)

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

The
negligence per se doctrine, as codified in Evidence Code section 669, creates a

presumption of negligence if four elements are established: “(1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence of the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.” (Galvez v. Fields (2001) 88 Cal.App.4th 1410, 1420.)

Defendants

argues Plaintiff has failed to state facts sufficient to constitute a cause of action as “negligence per se” is an evidentiary doctrine that does not by itself establish tort liability. Thus, if Plaintiff’s other negligence-based causes of action survive to trial, then Plaintiff can attempt to present evidence that the four above-listed elements are satisfied and a presumption of negligence per se arises. Plaintiff cannot, however, allege an independent cause of action based upon the doctrine.

The

Court finds that Plaintiff may not state a separate cause of action for negligence per se. “[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence. (McKenna v. Beesley (2021) 67 Cal.App.5th 552, 574.) As Defendant states, it may be applied if Plaintiff’s other negligence-based causes of action survive to trial.

Accordingly,

the demurrer is SUSTAINED with no leave to amend.